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Respondent, In Pro Per

SUPERIOR COURT OF CALIFORNIA

COUNTY OF LOS ANGELES

CENTRAL DISTRICT

In Re Marriage of: SHANNON MINOR, Petitioner, v. HALSEY MINOR, Respondent.	Case No: **24STFL00432** **RESPONDENT'S BRIEF**

Respondent submits this brief solely in response to the Court's March 2, 2026 Minute Order. Respondent answers the Court's questions on the assumption stated in the order - that the challenged filing is a post-appearance request for order - and does not waive any separate objection to defective service, lack of timely notice, or relief available under Code of Civil Procedure section 473(d).

The Court's March 2, 2026 order already recognized that the sanctions RFO could not proceed because the timing required for service to Mexico had not been satisfied. The questions now are best answered as follows: (1) for a post-appearance RFO, the better reading is that the Hague Service Convention does not require Central Authority service, because California's

family-law rules shift later RFO service to domestic notice rules; (2) mail service was not proper on this record, because the method used did not provide timely notice and the evidence shows that multiple mailings were delivered together months late; and (3) the Court may enter a prospective service protocol, but it should not retroactively validate prior defective service and should not make unconsented email the sole formal service method for a self-represented party.

I. DOES THE HAGUE CONVENTION APPLY?

On the Court's stated assumption that this is a post-appearance RFO, probably not as a mandatory Central Authority requirement. California Rules of Court, rule 5.68 governs service of summons and petition abroad. Rule 5.92 separately governs requests for order. Under rule 5.92(f)(1), summons-style service is required only when the responding party has not yet appeared, temporary emergency orders were granted, or the court specifically ordered personal service. The pending matter is a sanctions/attorney-fees RFO, not a post-judgment motion to modify custody, visitation, or child support. Rule 5.92(f)(3) therefore supplies the governing rule: all other requests for orders may be served under Code of Civil Procedure section 1010 et seq., including service by mail. Under Volkswagenwerk AG v. Schlunk (1988) 486 U.S. 694, 700, 707, and Rockefeller Technology Investments (Asia) VII v. Changzhou SinoType Technology Co. (2020) 9 Cal.5th 125, 139, the Hague Convention is mandatory only when forum law requires transmission abroad to complete service. For a post-appearance RFO governed by rule 5.92(f)(3), California law points to domestic notice rules, not to mandatory Hague Central Authority service.

That answer should be narrow. Article 10 allows postal channels only if the destination state does not object, and Mexico has objected to Article 10 postal channels. (Hague Service Convention, art. 10; Water Splash, Inc. v. Menon (2017) 581 U.S. 271, 279-281; HCCH status table, Mexico declarations.) So, if the Court were to conclude that Hague does govern a particular transmission abroad in this case, postal-channel service would still not be available.

II. WAS SERVICE BY MAIL OF THIS RFO TO MEXICO PROPER?

No, not on this record.

California law does contemplate mail service for post-appearance RFO papers. Rule 5.92(f)(3) incorporates Code of Civil Procedure section 1010 et seq., and section 1005(b)

expressly adds 20 calendar days when either the mailing address or the service address is outside the United States. But those statutes do not end the analysis. Due process still requires notice reasonably calculated, under all the circumstances, to apprise the responding party in time to be heard. (Mullane v. Central Hanover Bank & Trust Co. (1950) 339 U.S. 306, 314.)

Here, the Court has already recognized that the March 2, 2026 hearing could not proceed because the timing required for service to Mexico had not been satisfied. The supporting declarations and exhibits submitted with Respondent's accompanying papers show more than a technical defect: they show that multiple mailings from Petitioner's counsel were delivered together on February 24, 2026, months after mailing and after the relevant hearing dates, as reflected in the front-desk/building records, witness declarations, and photographs of the bundled delivery. That evidence rebuts any ordinary assumption that the method used was functioning in a manner reasonably calculated to provide timely notice.

Once a chosen method is known to be failing, due process requires reasonable follow-up steps, not mechanical repetition of the same unsuccessful method. (Jones v. Flowers (2006) 547 U.S. 220, 230-234.) And the rule that service by mail is complete on mailing under Code of Civil Procedure section 1013 does not cure a method that, on this record, failed to provide a meaningful opportunity to respond before the hearing. (Peralta v. Heights Medical Center, Inc. (1988) 485 U.S. 80, 84-86.) For that reason, the Court should answer the second question no as to the mail service actually used here.

III. CAN THE COURT ORDER AN ALTERNATIVE METHOD OF SERVICE?

Yes, prospectively; but any such order must stay within the governing rules.

The Court has authority to set a lawful prospective protocol when the default method has failed in practice. (Code Civ. Proc., § 187.) The Court may therefore direct a method reasonably calculated to provide actual, timely notice for future post-appearance papers. It should do so here.

Two limits matter. First, the Court should not retroactively validate service that did not provide constitutionally adequate notice for hearings that have already passed. If moving papers were not served as required by rule 5.92, the proper course is to reschedule the hearing and require proper service. (Cal. Rules of Court, rule 5.95(b); Peralta, supra, 485 U.S. at pp. 84-86.) Second,

the Court should not make unconsented email the sole formal service method for a self-represented party in this ordinary post-appearance RFO setting. Code of Civil Procedure section 1010.6(c) provides that an unrepresented party may consent to electronic service. Rule 2.251(c)(3)(B) and rule 2.253(b)(2)-(3) likewise state that self-represented parties are to be served by non-electronic methods unless they affirmatively consent. And where the Rules of Court do authorize court-ordered mandatory electronic service, they do so only in specified civil actions such as class, consolidated, coordinated, group, or complex actions, with mailed notice to parties who have not consented. (Cal. Rules of Court, rules 2.251(d), 2.253(c).) Separately, when California intends to authorize court-directed email service, it says so expressly in the summons context. (Code Civ. Proc., § 413.30, eff. Jan. 1, 2026.) That distinction matters: section 413.30 concerns service of summons, while this brief concerns a later RFO governed by rule 5.92.

The appropriate prospective order is narrower and more practical: future formal service of post-appearance papers should be made by a trackable, delivery-confirmed international method that the Court finds lawful under its ruling; if the Court concludes Hague applies, then through Mexico's Central Authority or other Hague-compliant means. Same-day courtesy email may be required as supplemental notice only, unless Respondent later files a written consent to formal electronic service. And no hearing should proceed unless proof of delivery or written acknowledgment of receipt is on file and the applicable notice period under Code of Civil Procedure section 1005(b) has run.

CONCLUSION

1. For a post-appearance RFO seeking sanctions and attorney's fees, service is governed by California Rules of Court, rule 5.92, and—based on the assumptions in the Court's March 2, 2026 Minute Order—the Hague Convention does not require service through a Central Authority; however, if a future transmission abroad falls within the scope of the Hague Convention, Mexico's objection to Article 10 precludes service by postal channels. If Petitioner wishes to proceed on the RFO, future formal service of post-appearance papers shall be made by a trackable, delivery-confirmed international method that is otherwise lawful under this order and applicable law. If Petitioner contends Hague-compliant

service is required, service shall be made through Mexico's Central Authority or other lawful Hague-compliant means.

2. The mail service actually used here was not proper on this record because it did not provide timely notice and was not reasonably calculated to do so.

3. The Court may order a prospective lawful service protocol, but it should not retroactively validate prior defective service and should not make unconsented email the sole formal service method for a self-represented party. Respondent further requests that the Court state these answers expressly in its written order so the governing service protocol is clear going forward.

4. Respondent expressly preserves for appellate review, including by writ or appeal as appropriate under California Rules of Court, rule 8.104 and Code of Civil Procedure section 904.1: (a) the validity of all prior orders entered without constitutionally adequate service and notice; (b) all rights under Code of Civil Procedure section 473(d) to vacate any such orders; and (c) the propriety of any order requiring electronic service on a non-consenting self-represented party.

5. Same-day courtesy email to Respondent's email address may be used only as supplemental notice and shall not constitute formal service unless Respondent later files a written consent to electronic service.

6. It is requested that no hearing shall proceed unless proof of delivery or written acknowledgment of receipt is on file and the applicable notice period under Code of Civil Procedure section 1005(b) has run.

7. It is respectfully requested that the Court order that nothing in its Order shall be construed to retroactively validate any prior defective service or to limit any relief otherwise available under California Code of Civil Procedure section 473(d)

Dated: March 27, 2026

Halsey Minor
Halsey Minor (Mar 27, 2026 17:12:02 CDT)

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